

Tentative Rulings for September 16, 2026

Department M301

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M301 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
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- Meeting Number: **161 538 5472**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2517406	LOSADA VS OBEIDIN	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Motion to Compel Arbitration is Denied.

Request for Judicial Notice - Plaintiff seeks judicial notice of tax forms, Moving Defendants' answers in other lawsuits, and a minute order in another lawsuit. None of these documents appear relevant to this motion. As such, the request for judicial notice is denied.

Arbitration - The court must grant a petition to compel arbitration unless it finds either: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP §1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.)

The petition to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (Cal. R. Ct. 3.1330; see *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218–219.) “[U]nder this rule, unless there is a dispute over authenticity, it is sufficient for a party moving to compel arbitration to recite the terms of the governing provision.” (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793.) A petitioner is not required to authenticate the respondent’s signature on an arbitration agreement as a preliminary matter in the moving papers and is only required to do so if the signature is challenged. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846.)

When a party moving to compel arbitration provides a copy of the alleged arbitration agreement that it purports to have the plaintiff’s signature, it meets its initial burden. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.) This burden has been met by Moving Defendants. Moving Defendants provide a copy of an arbitration agreements that appears to have Plaintiff’s signature. The agreement states “any and all monetary, damage and/or membership disputes between you and your chapter and/or the Fraternity or involving any entity or person who is affiliated with the Fraternity shall be resolved by non-judicial mediation as a first effort and, if that mediation does not resolve the matter, by binding arbitration in accordance with the Fraternity’s dispute resolution procedures which include a waiver of judges and juries in all state and federal judicial system.” (Terms and Conditions of Your Membership in Your Chapter of the Pi Kappa Alpha International Fraternity, ¶ 10.). The agreement defined Fraternity as PKA International. (*Id.*) Plaintiff in his FAC alleges that Moving Defendants are alter egos. (FAC, ¶ 56.) Due to this, the agreement appears to cover the issue in the FAC asserted against Moving Defendants.

Plaintiffs now have the burden to offer admissible evidence creating a factual dispute as to the authenticity of the signature. (*Iyere, supra*, 87 Cal.App.5th at 755.) He does not challenge the validity of his signature. He also does not challenge that PKA International

is a party to the agreement. He does assert that the agreement is not enforceable because of CCP § 1281.2(c), the agreement is unconscionable, the arbitration clause does not encompass Plaintiff's claims, the motion is premature, and the agreement is not enforceable against Oak because it is not a signatory.

CCP § 1281.2: Under CCP § 1281.2,

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that

(c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. For purposes of this section, a pending action or special proceeding includes an action or proceeding initiated by the party refusing to arbitrate after the petition to compel arbitration has been filed, but on or before the date of the hearing on the petition.

A court has the following options if it finds that CCP § 1281.2(c) is applicable:

The court (1) may refuse to enforce the arbitration agreement and may order intervention or joinder of all parties in a single action or special proceeding (2) may order intervention or joinder as to all or only certain issues; (3) may order arbitration among the parties who have agreed to arbitration and stay the pending court action or special proceeding pending the outcome of the arbitration proceeding; or (4) may stay arbitration pending the outcome of the court action or special proceeding.

Plaintiff contends the requirements under CCP § 1281.2(c) have been met. They assert that while PKA International is a party to the arbitration agreement, the other defendants are not. Plaintiff contends all the defendants' claims are tied to the same hazing course of conduct and the April 13, 2024 rollover accident. Due to this, he contends that CCP § 1281.2(c) applies and the motion should be denied. Moving Defendants concedes that the first two requirements under CCP § 1281.2(c) have been met. However, they argue that there is no common issue of law or fact in this matter between the defendants (the third element). They argue that the basis of liability is distinct among the defendants. As such, CCP § 1281.2(c) is not applicable.

CCP § 1281.2(c) is applicable. Liability against Moving Defendants, PKA, CSU, Family Trustees, Brayden Offord, Kory McCann, and Brandon Judy for the first cause of action is based in part on their failure to prevent hazing-related conduct, including sleep deprivation and unsafe travel practices that allegedly occurred at the retreat by PKA. (FAC, ¶ 134.) The second cause of action alleges that Moving Defendants, PKA, and CSU are all liable for their failure to use reasonable care in supervising or monitoring, which resulted in the car accident and injury to Plaintiff. (FAC, ¶¶ 138, 140, 142-145.) Liability against the Family Trust, Kory McCann, and Brandon Judy in the third cause of

action is sought in part based on injuries caused by the car accident. (FAC, ¶¶ 147, 148, 150, 151-154.) The sixth cause of action against Moving Defendants, PKA, Brayden Offord, Kory McCann, and Brandon Judy is based on hazing at the retreat and exhaustion-induced return travel. (FAC, ¶ 167.) The seventh cause of action against Moving Defendants, PKA, Brayden Offord, Kory McCann, and Brandon Judy is based on hazing at the retreat. (FAC, ¶ 174.) If there were no hazing activities at the retreat or if the hazing activities did not cause or contribute to the accident, most of the claims against the defendants would fail. Due to this, the claims against the defendants all share a common question of fact. If the claims regarding Moving Defendants went to arbitration, there could be inconsistent rulings if one of the venues finds that there was no hazing at the retreat/or the hazing did not cause or contribute to the accident and the other venue finds that there was hazing at the retreat/or the hazing caused or contributed to the accident.

Since there is a potential for inconsistent rulings, the requirements for CCP § 1281.2(c) have been met and the motion to compel arbitration would be denied for that reason.

Unconscionability - Plaintiff also contends the arbitration agreement is unconscionable and asserts the motion should be denied on this basis. “Unconscionable arbitration agreements are not enforceable.” (*Wherry v. Award, Inc.* (2011) 192 Cal.App.4th 1242, 1245.) “To be voided on this ground, the agreement must be both procedurally and substantively unconscionable.” (*Ibid.*) “But they need not be present to the same degree.” (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114 (*Armendariz*)). Rather, the court invokes a “sliding scale” to determine unconscionability: “The more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Ibid.*) “The burden of proving unconscionability rests upon the party asserting it.” (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126.) Unconscionability is a question of law. (*Malone v. Superior Court* (2014) 226 Cal.App.4th 1551, 1562.)

Procedural unconscionability may be proven by showing oppression which is present when a party is given no meaningful opportunity to negotiate the terms of the contract which is presented on a take-it-or-leave-it basis. (*Wherry v. Award, Inc., supra*, 192 Cal.App.4th at 1246.) Plaintiff provides a declaration that states he was told if he did not sign the agreement, he would be dropped from the pledge process. (Declaration of Camilo Losada, ¶ 4.) This appears sufficient to establish some procedural unconscionability.

Plaintiff also argues that the agreement is procedurally unconscionable because of surprise. He argues that the agreement states that the fraternity’s dispute resolution process would govern arbitration. However, those rules were not provided or described. The California Supreme Court in *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1246 noted that the failure to provide the arbitration rules does not provide “a greater degree of procedural unconscionability” because the unconscionability claim must depend on the arbitration rule in question. In other words, the plaintiff must demonstrate that there is something in the rules that he was unaware of that makes them unconscionable. (*Id.*) Plaintiff does not address any of the rules. Due to this, the procedural unconscionability argument regarding the arbitration rules fails.

Plaintiff argues that the agreement is substantively unconscionable. “Substantive unconscionability addresses the fairness of the terms in dispute.” (*Wherry v. Award, Inc.*, *supra*, 192 Cal.App.4th at 1248.) He asserts there is substantive unconscionability because the rules that apply to arbitration have been drafted by PKA International with no consent from Plaintiff. Neither party has provided the Court with a copy of the arbitration rules. As such, the Court cannot determine if they are appropriate or not. Neither of the cases relied on by Plaintiff provides that a procedure drafted by one party for arbitration is per se improper. *Murrey v. Superior Court* (2023) 87 Cal.App.5th 1223, 1242-1243, found arbitration rules that gave the drafting party control to select the designated dispute resolution organization, which would not be disclosed ahead of time, and the drafting party could change at any point of time was unconscionable. Without knowing what the actual arbitration rules say, it is unclear if they are similar to *Murrey*. As such, this argument fails.

Next, Plaintiff argues the agreement is substantively unconscionable because it does not contain a provision addressing the allocation of arbitration fees or costs. Plaintiff does not point to anything in the rules governing arbitration that would require costs that would be greater than those found in litigation. Neither of the cases relied on by Plaintiff finds that the failure to address costs makes an arbitration agreement substantively unconscionable. In *Gutierrez v. Autowest, Inc.* (2004) 114 Cal.App.4th 77, 90, the Court provides that “it is substantively unconscionable to require a consumer to give up the right to utilize the judicial system, while imposing arbitral forum fees that are prohibitively high.” However, as discussed above, Plaintiff fails to identify any fees under PKA International’s arbitration rules that are greater than those found in litigation. In *Parada v. Superior Court* (2009) 176 Cal.App.4th 1554, 1579, the Court found that because the matter did not involve employment claims, the court considered the amount of arbitration fees and costs, and the ability of the party opposing arbitration to pay them to determine if costs made arbitration substantively unconscionable. Again, Plaintiff has failed to set forth any necessary evidence regarding the cost of arbitration. As such, this argument fails.

Plaintiff’s last argument for procedural unconscionability is that PKA International can change the governing terms of arbitration. Again, a copy of the arbitration rules has not been provided. As such, it is not clear how these rules can be changed. Additionally, one party’s right to modify an arbitration agreement does not make it illusory. (*Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 385-390.) As such, this argument fails.

Since Plaintiff has failed to establish substantive unconscionability, his argument for unconscionability fails. While the unconscionability argument fails, the motion is still denied based on CCP § 1281.2(c).

Premature Motion - Plaintiff contends that this motion should also be denied because it is premature. He argues that under the arbitration agreement, the parties are required to first try and resolve this matter through mediation. Plaintiff is correct that the arbitration agreement provides that mediation is to be attempted before arbitration. It appears that both sides appear open to mediation. (Exhibit 4 to Patrick R. Ball’s Declaration.) As such, at most, continuing this motion pending the outcome of mediation would be

appropriate. However, since this motion should be denied under CCP § 1281.2(c), a continuance is not necessary.

Arbitration Clause does not Encompass Plaintiff's Claims - Plaintiff argues that the arbitration agreement does not apply to catastrophic person injury torts. Arbitration agreements are construed in favor of sending the parties to arbitration unless it is clear that the arbitration clause cannot be interpreted to cover the dispute. (*Cione v. Foresters Equity Servs.* (1997) 58 Cal.App.4th 625, 642.) The arbitration provision at issue is very broad. It states “any and all monetary, damage and/or membership disputes between you and your chapter and/or the Fraternity or involving any entity or person who is affiliated with the Fraternity shall be resolved by non-judicial mediation as a first effort and, if that mediation does not resolve the matter, by binding arbitration in accordance with the Fraternity’s dispute resolution procedures which include a waiver of judges and juries in all state and federal judicial system.” (Terms and Conditions of Your Membership in Your Chapter of the Pi Kappa Alpha International Fraternity, ¶ 10.) Plaintiff is not seeking equitable relief. He is seeking damages, which fall within the arbitration agreement. As such, this provision appears to apply to his claims.

Non-signatory - Plaintiff argues that Oak cannot compel him to arbitration because he is not a signatory to the agreement. “The general rule is that one must be a party to an arbitration agreement either to be bound by or to invoke it.” (*Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1128.) However, a nonsignatory can enforce an arbitration agreement that their alter ego is a party to. (*Jenks v. DLA Piper Rudnick Gary US LLP* (2015) 243 Cal.App.4th 1, 9-10.) Plaintiff alleges that Moving Defendants are each others alter egos. (FAC, ¶ 56.) Due to his, Plaintiff’s nonsignatory argument fails.

Hazing Claims - Plaintiff argues that since he has a claim for hazing, which is based on a penal code section, this claim cannot be compelled to arbitration. However, Plaintiff fails to cite to any authority that supports this assertion. Statutory claims can be resolved via arbitration. (See *Armendariz, supra*, 24 Cal.4th at 100-113.) As such, this argument fails.

Conduct in Bad Faith - Plaintiff argues that Moving Defendants’ conduct in filing an answer and demanding a jury trial is inconsistent with arbitration. The authority cited to by Plaintiff to support this argument pertains to waiver. “[I]n determining whether a party to an arbitration agreement has lost the right to arbitrate by litigating the dispute, a court should treat the arbitration agreement as it would any other contract, without applying any special rules based on a policy favoring arbitration. That is, courts should apply the same procedural rules that they would apply to any other contract.” (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 583.) “To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it.” (*Id.* at 584.) “The relevant factors establishing waiver include whether the party’s actions are inconsistent with the right to arbitrate; whether the litigation machinery has been substantially invoked and the parties were well into preparation of a lawsuit before the party notified the opposing party of an intent to arbitrate; whether a party delayed for a long period before seeking a stay; whether important intervening steps [e.g., taking advantage of judicial discovery procedures not available in arbitration] had taken place; and whether

the delay affected, misled, or prejudiced the opposing party.” (*Hoover v. American Income Life Ins. Co.* (2012) 206 Cal.App.4th 1193, 1204.)

There is no evidence that Moving Defendants have conducted extensive discovery, substantially delayed in pursuing their right to arbitration, or taken advantage of procedures only available in court. As such, this argument fails. However, since CCP § 1281.2(c) is applicable, this motion is denied.

2.

CASE #	CASE NAME	HEARING NAME
CVME2517406	LOSADA VS OBEIDIN	DEMURRER ON 1 ST AMENDED COMPLAINT

Tentative Ruling: Demurrer to First and Second Causes of Action sustained with 20 days leave to amend.

Meet and Confer - The parties’ counsel met and conferred by telephone before this motion was filed. This is sufficient to meet the meet and confer requirements under CCP § 430.41. (Declaration of Roberta A. Kraus, ¶ 4.)

Merits - A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly alleged, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Kattelman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

CSU is a government entity. Under the California Tort Claims Act (“Tort Act”) (Government Code §§ 810, et seq.), government tort liability must be based on a statute. (*Michael J. v. Los Angeles County Dept. of Adoption* (1988) 201 Cal.App.3d 859, 866.) The Tort Act specifically states: “[e]xcept as otherwise provided by statute: (a) public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” (Government Code § 815.)

The two causes of action at issue in this motion are the first cause of action for negligence and the second cause of action for negligent supervision. A cause of action for negligence requires a duty of care owed by the defendant to the plaintiff, breach of this duty, causation, and damages, (*Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305.) “To establish negligent supervision, a plaintiff must show that a person in a supervisory position over the actor had prior knowledge of the actor’s propensity to do the bad act.” (*Z.V. v. County of Riverside* (2015) 238 Cal.App.4th 889, 902.)

As discussed above, the Tort Act requires that tort liability against a government entity be based on a statute. (*Michael J. v. Los Angeles County Dept. of Adoption* (1988) 201 Cal.App.3d 859, 866.) Additionally, such a cause of action must be alleged with particularity. “In view of the fact that tort causes of action against public entities are now based on statute, the general rules that statutory causes of action must be pleaded with particularity is applicable. Every fact essential to the existence of statutory liability must be pleaded.” (*Susman v. Los Angeles* (1969) 269 Cal.App.2d 803, 809.) “[A] direct claim against a government entity asserting negligent hiring and supervision, when not grounded in the breach of a statutorily imposed duty owed by the entity to the injury party, may not be maintained.” (*de Villers v. County of San Diego* (2007) 156 Cal.App.4th 238, 255-256.)

The first cause of action for negligence and the second cause of action for negligent supervision are both based on Government Code §§ 815.2 and 815.6 and Education Code § 66307. Both of these causes of action are based on injuries sustained by Plaintiff due to the traffic accident that occurred in Riverside County. (FAC, ¶¶ 136 and 145.) Under Government Code § 815.2(a), “[a] public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against the employee or his personal representative.” “When assessing a claim for vicarious liability against a governmental employer based on the acts or omissions of its employee, a court must examine whether the employee who acted or failed to act would have been personally liable for the injury.” (*de Villers v. County of San Diego* (2007) 156 Cal.App.4th 238, 249.)

“In general, each person has a duty to act with reasonable care under the circumstances. However, ‘one owes no duty to control the conduct of another, nor to warn those engaged by such conduct.’” (*Regents of University of California v. Superior Court* (2018) 4 Cal.5th 607, 619.) There is generally no duty to protect others from the conduct of third parties. (*Id.* at 627.) There is a special relationship between colleges and students when the students are engaged in activities that are part of the school’s curriculum or closely related to its delivery of educational services. (*Id.* at 625-626.)

Colleges generally have little say in how students behave off campus, or in their social activities unrelated to school. It would be unrealistic for students to rely on their college for protection in these settings, and the college would often be unable to provide it. This is another appropriate boundary of the college-student relationship: Colleges are in a special relationship with their enrolled students only in the context of school-sponsored activities over which the college has some measure of control.

(*Id.* at 626.) The special relationship between colleges and students “extends to activities that are tied to the school’s curriculum but not to student behavior over which the university has not significant degree of control.” (*Id.* at 627.)

CSU contends that there are no factual allegations that show one or more of its employees owed Plaintiff a duty of care and breached this duty. It asserts there are no factual allegations that CSU employees created the peril posed by Plaintiff’s travel to a non-CSU sanctioned event hours away from campus. It asserts that no CSU employees owed it a special duty of care. CSU’s arguments appear to have merit. First, neither the

first nor the second causes of action identify any CSU employee. They fail to identify what this employee did or failed to do. The first and second causes of action just generically contend CUS is liable through the acts and omissions of its employees within the course and scope of their employees. (FAC, ¶¶ 133 and 141.) As discussed above, tort causes of action against government entities must be alleged with particularity. (*Susman, supra*, 269 Cal.App.2d at 809.) These conclusory allegations do not meet this heightened pleading requirement.

Plaintiff points to allegations in his general allegations section of the FAC. However, these allegations are insufficient. The FAC alleges that PKA was a student organization at CSULB. (FAC, ¶ 9.) Student organizations were required by CSU to agree to anti-hazing rules, the use of property with conditioned on compliance of the rules, and assigned personnel with responsibility for oversight, investigation, and discipline of recognized student organizations. (FAC, ¶ 74.) He alleges on information and belief Trace Camacho, and Associate Dean of Students and the Fraternity and Sorority Life advisor observed and received reports of activity consistent with hazing and pledge-control practices. (FAC, ¶ 79.) Weekly status meetings and pledge activities were alleged held on campus and CSU property. (FAC, ¶ 63.) During these status meetings, pledges were required to do acts of servitude for active members. (FAC, ¶ 64.) Pledges were required to assume and maintain positions and then punished by being required to lie on the floor of CSU buildings for failing to maintain said positions. (FAC, ¶ 65.) Pledges were also required to wear suits to workout at the CSU gym. (FAC, ¶ 67.)

The conduct at issue that resulted in Plaintiff's injuries was a traffic accident that occurred in Riverside County (not on CSU property) due to activity that allegedly occurred at a retreat that took place at a location that was not on CSU property. There are no allegations that the retreat was sponsored by CSU. There is no allegations that CSU employees had any involvement or knowledge of the retreat. Plaintiff fails to point to any authority that supports that CSU could be liable for Plaintiff's injuries based on this conduct. Due to this, liability under Government Code § 815.2 fails.

Education Code § 66307 states "[n]o person shall be subjected to hazing in any program or activity conducted by any education institution that receives, or benefits from, state financial assistance or enrolls students who receive state student financial aid." Under Government Code § 815.6, "[w]here a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty." Government Code § 815.6 only applies if the statute at issue imposes a mandatory duty. (*Clausing v. San Francisco Unified School Dist.* (1990) 221 Cal.App.3d 1224, 1239.) A mandatory duty does not simply require a statute prohibiting conduct, it also requires guidelines or rules for the government entity to implement to fall within Government Code § 815.6. (*Id.* at 1239-1240.)

In *Clausing* the applicable statutes were Education Code §§ 49000 and 49001. Education Code § 4900 stated:

The Legislature finds and declares that the protecting against corporal punishment, which extends to other citizens in other walks of life, should include children while they are under the control of the public schools. Children of school age are at the most vulnerable and impressionable period of their lives and it is wholly reasonable that the safeguards to the integrity and sanctity of their bodies should be, at this tender age, at least equal to that afforded to other citizens.

Education Code § 49001 sets forth the definition of corporal punishment and identifies two instances that are not considered corporal punishment. It also states that no individual employed by a public school shall inflict corporal punishment on a pupil and that rules, ordinances, bylaws, resolutions, or other acts authorizing corporal punishment are void and unenforceable. (*Clauson, supra*, 221 Cal.App.3d at 1240 f. 8.) The Court found that these statutes were not sufficient to impose a mandatory duty under Government Code § 815.6.

The Court stated:

These statutes are clearly prohibitory in effect, they set forth an express statutory prohibition on certain conduct, with certain enumerated exceptions. Although they may establish important rights and confer significant benefits on members of the public, they do not create any mandatory, affirmative duty on the part of the public schools and school districts to take action or carry out measures to ensure that students are never subjected to corporal punishment by teachers. The statute set forth no guidelines or rules for schools to follow in implementing an affirmative duty to prevent corporal punishment.

(*Id.* at 1240.) “[T]hese provisions are simply declarations or rights, imposing no mandatory duties upon respondents affirmatively to ensure or to guarantee the protection of the particular stated rights to safe schools and privacy. They fail to supply the necessary rules for implementation of the rights they set forth.” (*Id.* at 1241.)

Education Code § 66307 is very similar to Education Code §§ 49000 and 49001. While it prohibits conduct (hazing in any program or activity conducted by any education institution that receives or its students receive state financial assistance), it does not set forth necessary rules for implementation of these rights. Due to this, CSU’s argument has merit, and liability cannot be asserted based on Education Code § 66307 and Government Code § 815.6.

Since Plaintiff has failed to sufficiently allege liability based on Government Code §§ 815.2 and 815.6 or Education Code § 66307, the demurrer is sustained as to the first and second causes of action against CSU with leave to amend.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2401577	HENDERSON VS HEMET UNIFIED SCHOOL DISTRICT	MOTION TO COMPEL FURTHER DISCOVERY RESPONSES AND FOR PRODUCTION OF DOCUMENTS

Tentative Ruling: Motion granted in part. Granted as to RFP Set Two 1-17. Defendant to serve further verified code compliant responses to all non-privileged documents

within 20 days. Defendant may serve a privilege log to permit evaluation of the claim. Motion is moot as to Form Interrogatories – Employment, Set Two (FROGs) and Requests for Admissions, Set Three (RFAs) in light of Defendant's service of verified supplemental responses on August 31, 2026. Sanctions awarded in the amount of \$2,310.

Plaintiff has filed a motion seeking to compel further responses to Form Interrogatories – Employment, Set Two (FROGs), Requests for Production of Documents, Set Two (RFPs) and Requests for Admissions, Set Three (RFAs). Plaintiff's counsel argues she granted an extension and attempted to meet and confer to resolve the issues, but Defendant failed to provide any substantive supplemental response or produced responsive documents. Plaintiff seeks \$6,360.00 in sanctions.

Defendant opposes arguing that the motion is largely moot as it served substantive verified further responses to RFAs and FROGs on August 31, 2026. Defendant argues Plaintiff does not establish good cause to compel further responses or production to duplicative or equally available document requests. Plaintiff's initial RFPs sought 100 categories of documents, including substantially the same categories as RFPs sets 2 (at issue in this motion) and 3. It argues sanctions are not warranted as it acted with substantial justification in objecting and has substantially complied by serving supplemental responses.

In reply, Plaintiff argues the supplemental responses to FROGs and RFAs remain objection laden and evasive. She argues Defendant has served no further response, and produced no documents at all, in response to the RFPs. Finally, the record supports monetary sanctions.

A party may file a motion compelling further responses to interrogatories, requests for production and requests for admission if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (C.C.P., §§ 2030.300, 2031.310, 2033.290.)

On the merits, as to FROGs and RFAs, Defendant argues the motion is moot given its service of verified supplemental responses on August 31, 2026. The court is not precluded from granting a motion to compel response filed under Code of Civil Procedure, even if the responding party serves untimely responses after the propounding party has served the motion. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408-409.) But, there are procedural requirements which must be met for an order compelling the further responses, including a requirement for good faith meet and confer (Code Civ. Proc., § 2016.040), and a requirement for a separate statement (Cal. Rules of Court, rule 3.1345). Before seeking an order compelling further responses to the belatedly served responses, the Court requires compliance with these procedural requirements. The motion is moot as to these requests.

As to RFPs, at issue are Nos. 1-17. A responding party must choose among a compliance statement, an inability-to-comply representation, or an objection. (C.C.P., § 2031.210(a).) In response to each of the subject requests, Defendant served only boilerplate objections and nothing else. For example, as to each request Defendant

objects to this request on the grounds that it is vague, ambiguous, overbroad, unintelligible, argumentative, irrelevant and not proportional to the needs of the case, calls for expert opinion, calls for legal conclusion, seeks information protected by the attorney-client privilege and/or attorney work-product doctrine, seeks information sought equally available to Plaintiff, seeks information sought is protected from disclosure by Plaintiff's and third party's privacy rights and privileges and that the request is compound. Defendant also asserted Education Code, pt. 27, ch. 6.5 as objections to Nos. 2-7, 14 and 15. Where, as here, every response consists only of objections and omits any compliance statement or inability representation, the responses are structurally incomplete under the statutory scheme.

Defendant does not defend the propriety of the responses, instead it argues Plaintiff has failed to show good cause. The motion to compel further responses "shall set forth specific facts showing good cause justifying the discovery sought by the demand." (C.C.P., § 2031.310(b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) To establish "good cause," the burden is on the moving party to show both relevance to the subject matter and specific facts justifying discovery. (*Glenfed Develop. Corp. v. Sup. Ct.* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is established, the responding party has the burden to justify any objections made to document disclosure. (*Kirkland, supra*, 95 Cal.App.4th at 98.)

Plaintiff has shown good cause for Nos. 1–17, including: The employee handbook (No. 1), which is relevant to the terms, policies, and procedures governing Plaintiff's employment; Complaint, threat, and incident records (Nos. 2–6), which bear directly on the factual context of Plaintiff's conduct and Defendant's explanation for its employment action; Administrator identities, which relate to the decision chain (Nos. 7); Board minutes and documents provided to the Board to support the decision (Nos. 9-13), which go directly to what reasons were presented to the Board and whether Defendant's litigation position matches its contemporaneous internal presentation; Communications with Heritage High School regarding the Subject Student (No. 14), which goes to the basis of her claims; Service-date, probationary-period, and employment-status records (Nos. 15-17), which bear directly on Defendant's asserted basis for release.

Defendant's reliance on delay in propounding Set Two does not defeat good cause. Timeliness in propounding discovery is not an element of the statutory good-cause showing under section 2031.310(b)(1).

Defendant also argues the requests at issue are duplicative of Plaintiff's initial RFPs. However, duplication was not stated as a basis for the objections in the responses actually before the Court. As such, this objection is waived. (*Stadish v. Sup. Ct.* (1999) 71 Cal.App.4th 1130, 1141 [A party whose response fails to set forth a particular ground for objection waives its right to raise that objection later].) Even if duplication were considered on the merits, the evidentiary showing is insufficient. Defendant states the requests seek the "same substantive categories of documents" as RFP one, but does not provide the Court with the initial RFPs, responses or production for the Court to determine whether there is actual overlap.

Defendant also argues the documents are equally available. Even assuming some Board minutes are publicly posted, the inspection-demand statutes do not authorize a

responding party to refuse production of its own records on that ground. The statutory options remain compliance, inability to comply, or objection. (C.C.P., § 2031.210.)

Defendant has otherwise presented no argument to support its blanket assertions of attorney client privilege, or privacy. Without identification of withheld documents, the Court cannot test whether any particular document is privileged. Moreover, Defendant made no showing of a legally protected privacy interest, reasonable expectation of privacy, or serious invasion thereof. The proper remedy is a further response that complies with section 2031.210.

It also failed to justify its assertion of Education Code as to Nos. 2-7, 14 and 15. Education Code section 49076(a) and FERPA's implementing regulation permit disclosure of pupil records under judicial order. Ed. Code § 49076. For requests that plausibly implicate pupil records, the statutes do not prohibit production because they contain an express judicial-order pathway. Defendant's opposition did not brief Education Code or FERPA standards and never explained why a court order, redaction, and confidentiality protections would not satisfy those statutes' purposes. However, the proper remedy is not automatic waiver but a further response that complies with sections 2031.210.

The final issue is sanctions. Monetary sanctions must be imposed against a party who unsuccessfully opposes a motion to compel further responses, unless court finds that the offending party acted with substantial justification. (C.C.P., §§ 2030.300(d), 2031.310(h), 2033.290(d); *Ghanooni v. Super Shuttle* (1992) 20 Cal.App.4th 256, 260.) The agreement to provide further responses "in due time," but waiting until after the motion was filed, does not appear to constitute "substantial justification" as contemplated under the statutes. Moreover, Plaintiff is entirely successful as to the RFPs as the August 4, 2026 responses consisted entirely of objections with no substantive statement of inability to admit or deny, document production, privilege log, or statement of inability to comply. As such, Plaintiff's request for sanctions is appropriate. However, the request for \$6,360.00 (9 hours at \$700/hour plus \$60 filing fee) is high for a single motion. Sanctions are imposed in a reduced amount of \$2,310.